

Embargoes under pressure

The debate over publishers' embargoes on lead titles will heat up again next month with the strictly controlled simultaneous UK and US publication of Donna Tartt's new novel.

Bloomsbury is so concerned that early selling could upset the worldwide publishing strategy behind *The Little Friend* that it has asked retailers to sign a contract not to sell the title before its publication date of 28th October, even if the book is put on sale by rivals earlier. Some booksellers have resisted such an unusual contract on the grounds that it could curtail their commercial freedom.

David Roche, Waterstone's product director, this week said he supported strict embargoes and called for booksellers to co-operate and respect publishers' directives. Retailers needed to agree on a way forward to prevent the unfair advantage of embargo-busting early selling, he told *The Bookseller*.

"A level playing field is what everyone is after and I support that. There is a lack of event and theatre when books dribble out a few days ahead of publication date. If everyone receives and sells books at the same time you would create more hype. We need to get our acts together, decide that is what we want to do, and stick to it."

Mr Roche, former product director of HMV, said that music retailers all respected the release dates on CDs. "No one has a problem with that and no one sells early."

Sheila Crowley, Hodder&Stoughton sales director, said publication dates were increasingly linked to marketing, PR or serial deals. "We would never give anyone an advantage. It is our position to ensure everyone gets their delivery within a window of three days."

Dallas Manderson, Orion group sales director, said Orion rarely used "costly" embargoes. "We do it when we have sold serial rights and newspapers demand exclusivity . . . we also do it with very big titles for the good of the trade. It also benefits the publisher to concentrate sales in the first week."

The increasing press serialisation of lead fiction has led to more sale bans being imposed, such as with Zadie Smith's *The Autograph Man* (Hamish Hamilton). Bloomsbury said it was too early to confirm a serialisation deal with the Tarrt book.

David Ward, Bloomsbury sales director, said embargoes varied from marketing-led bans imposed to boost consumer expectation to contractual obligations to keep to a global publication date.

Embargo-breaking on Harry Potter novels occurred outside the mainstream book trade. "For *The Goblet of Fire*, the distribution was so huge that we were supplying to third parties we didn't know, who were not used to selling books or respecting embargoes."

Mr Ward warned that Bloomsbury would not baulk at imposing sanctions on retailers who flouted the ban on early selling of *The Little Friend*, and had "taken action" against embargo-busters in the past.

"The next time, we supply them a week after publication. As the big books get bigger, half the sales are often made in the first week, so this is an effective weapon."

One branch manager said money was the only thing that counted with embargoes. "You stick to it as far as you can, but you actively look for someone breaking it. When they do, your whole region can have the books out front of store in minutes."

A marketing manager at a large chain said that embargoes created continual problems: "If a local supermarket puts a book on sale we'll have to, and it

wastes our time phoning every branch to ask them to remove a book from the shelves. If publishers want to enforce such strict dates, they have to invest in the right kind of distribution so we all get the book at the same time."

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